IT is hereby notified that the Minister of Finance and Economic Development has, in terms of section 235 as read with section 120 of the Customs and Excise Act [*Chapter 23:02*], made the following regulations:—

1. These regulations may be cited as the Customs and Excise (Suspension) (Amendment) Regulations, 2021 (No. 246).

2. These regulations shall be effective from 1st January 2021.

3. The Customs and Excise (Suspension) Regulations, 2003, published in Statutory Instrument 257 of 2003 (hereinafter called "the principal regulations"), are amended in section 9Q ("*Suspension of duty on Powdered Milk imported by approved importers*")—

(a) by the deletion of the words "31st December, 2020" and the substitution with the words "31st December, 2021"

(b) by the deletion of the Schedule to the section and the substitution with the following:

"Name of company	*Proposed allocation for 2021 (Kgs)*	
	Full Cream Milk Powder	*Skimmed Milk Powder*
Alpha Omega Dairy	25 000	8 000
Competitive Brand Shapers, trading as CBS	70 000	20 000
Dairibord Zimbabwe (Private) Limited	500 000	1 200 000
Dendairy (Private) Limited	1 300 000	500 000
Gouda Gold, trading as Yomilk	30 000	30 000
Kefalos Cheese Products	700 000	250 000
Kershelmer Dairies	100 000	100 000

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Name of company	*Proposed allocation for 2021 (Kgs)*	
	Full Cream Milk Powder	*Skimmed Milk Powder*
Milkzim (Private) Limited	20 000	2 000
Machiareer Investments (Private) Limited, trading as Mr. Brands	65 000	—
Nestle Zimbabwe (Private) Limited	250 000	90 000
Prodairy (Private) Limited	1 400 000	—
Sondelani Ranching (Private) Limited, trading as Hamara Foods	2 200	1 300".

4. The principal regulations are amended in section 9Y ("*Suspension of duty on luxury buses imported by approved importers"*)—

(a) by the deletion of the words "31st December, 2020" and the substitution with the words "31st December, 2021";

(b) by the deletion of the definition of "Luxury bus" and the substitution of the following—

""Luxury bus" means new bus of tariff code 8702.1911 and 8702.9011 being imported or removed from bond by an approved luxury bus importer;".

5. The principal regulations are amended in section 9GG (*Suspension of duty on sanitary ware*) by the deletion of the words from "1st December, 2019 to 30th November, 2020" and the substitution of words from "1st December, 2020 to 30th November, 2021".

6. The principal regulations are amended in section 9HH (*Suspension of duty on importation of brand new public service buses imported by approved importers*)—

(a) by the repeal of the definition of "public service bus" and substitution with—

""public service bus" means new buses of tariff code 8702.1911 and 8702.9011, with a sitting capacity of at least sixty passengers being imported or removed from in bond by an approved importer;";

(b) by the deletion of the words "… with effect from 1st January, 2020…" and the substitution with the words "…. for a period of twelve months with effect from 1st January, 2021".

7. The principal regulations are amended in section 9JJ (*Suspension of duty on specified buses imported by tour operators*) by the deletion of the words "1st January, 2020" and the substitution of the words "1st January, 2021".

8. The principal regulations are amended in section 9MM ("*Suspension of duty on raw cheese imported by approved importers*")—

(a) by the deletion of the words "31st December, 2020" and the substitution of the words "31st December, 2021";

(b) by the deletion of the Schedule to the section and the substitution with the following:

"TABLE 9MM-01 *(Section 9MM)*

APPROVED IMPORTERS OF RAW CHEESE ELIGIBLE FOR SUSPENSION OF DUTY

Name of company	***Ring-fenced Quantities of Raw Cheese*** ***(Kgs for 2021)***
Kefalos Cheese Products (Private) Limited	250 000
Gouda Gold, trading as Yomilk	15 000".

9. The principal regulations are amended by the insertion, after section 9MM, of a new section as follows—

"*Suspension of duty on importation of public service buses imported by the Zimbabwe United Passenger Company (Private) Limited*

9NN. (1) In this section—

"approved importer" means the Zimbabwe United Passenger Company (Private) Limited approved in terms of subsection 2 of this section;

"public service bus" means buses of tariff code 8702.10.11 and 8702.90.11, with a sitting capacity of at least sixty passengers being imported or removed in bond by an approved importer.

(2) The Minister of Finance and Economic Development in consultation with the Minister of Local Government and Public Works has approved the Zimbabwe United Passenger Company (Private) Limited as a public service bus importer for the purpose of this suspension.

(3) The Commissioner may not grant the suspension of duty to the Zimbabwe United Passenger Company (Private) Limited as an approved importer on the basis of non-compliance with section 34C of the Revenue Authority Act [*Chapter 23:11*].

(4) The Zimbabwe United Passenger Company (Private) Limited as an approved importer shall, for a period of twelve months with effect from 1st January, 2021, be allowed to import a maximum of two hundred and fifty public service buses under suspension of duty as provided for in this section.

(5) The approved importer shall, when effecting entry on importation, or on removal from bond of a public service bus under suspension, submit with the relevant bill of entry a declaration signed by him or her, to the effect that the public service bus is to be used for transporting persons in line with the approved importer's public transportation business.

(6) Subject to these regulations the effective rate of duty shall be five *per centum*.

(7) Subject to sections (2) and (3) an approved importer shall not dispose of any public service bus cleared under suspension of duty unless—

(a) written authority of the Commissioner is obtained; or

(b) payment of the duty suspended in accordance with this section has been made.

(8) The Commissioner may authorise the disposal of a public service bus on payment of such duty, not exceeding the amount of duty suspended, as he or she thinks fit, if, in his or her opinion, the public service bus cannot be economically used for the purpose for which it was entered under suspension.

(9) Duty suspended on a public service bus, which would have been accidentally destroyed before being used in the approved importer's business may be remitted if the Commissioner is satisfied that every reasonable effort was made and precaution taken to prevent its destruction.

(10) A public service bus shall be admitted under suspension of duty only if the approved importer has furnished to the satisfaction of the Commissioner—

(a) written authority from the Minister of Local Government and Public Works indicating the make, model, engine number and chassis number of the public transport service bus being imported; and

(b) a valid tax clearance certificate and proof of registration in terms of the Revenue Authority Act [*Chapter 23:11*].".